

TENTATIVE RULING

Case: **Arfsten v. Woodland Joint Unified School District**
Case No. CV-2025-1304

Hearing Date: **January 21, 2026** **Department Fourteen** **9:00 a.m.**

The Court reminds plaintiff of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

As a preliminary matter, on the Court’s own motion, the following causes of action are **STRICKEN** from plaintiff Sheri Arfsten’s second amended complaint:

- Second cause of action for failure to prevent retaliation;
- Third cause of action for defamation;
- Fourth cause of action for negligent supervision and retention; and
- Sixth cause of action for declaratory relief.

Plaintiff improperly inserted these causes of action in the second amended complaint because they are not drawn in conformity with the Court’s November 12, 2025, Minute Order on defendant Woodland Unified School District’s demurrer to plaintiff’s first amended complaint. (Code Civ. Proc., § 436.) Plaintiff failed to seek leave of court to add new causes of action. (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329 [“The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.”].)

Defendants’ defendants Woodland Joint Unified School District, Spencer Springer, Leanee Medina Estrada, Theresa Arias-Dunlop, Lewis Wiley Jr., and Michael Abarca’s demurrer to the remaining causes of action [first cause of action for retaliation in violation of Labor Code section 1102.5 and fifth cause of action for intentional infliction of emotional distress] on the ground that plaintiff fails to allege that she timely served a Government Tort Claim or legal justification for not doing so is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Plaintiff’s second amended complaint fails to allege facts demonstrating compliance with or excuse from the claim presentation requirement of the Government Claims Act, and no amendment can cure this defect. (Gov. Code, §§ 905, 910; *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1240 – 1241 [compliance with the claim presentation requirement is an element of a cause of action against a public entity]; *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 338; see *California Restaurant Management Systems v. City of San Diego* (2011) 195 Cal.App.4th 1581, 1591 [the Government Claims Act establishes certain conditions precedent to the filing of a lawsuit against a public entity]; *Petersen v. Vallejo* (1968) 259 Cal.App.2d 757, 766 [“...it is generally recognized that the mere fact the governmental entity has some notice or knowledge of the accident and possible claim will not excuse failure of the claimant to file a timely claim as required by the statute.”]; see also *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738-740 [the claims presentation requirement applies to

tort claims]; *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1129 [the claims presentation requirement applies to claim for retaliation under Labor Code section 1102.5]; see generally SAC.) Furthermore, substantial compliance cannot be predicated upon no compliance. (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 455, 456 “[It is well-settled that claims statutes must be satisfied even in face of the public entity’s actual knowledge of the circumstances surrounding the claim. Such knowledge -- standing alone -- constitutes neither substantial compliance nor basis for estoppel.”]; *Powers Farms, Inc. v. Consolidated Irrigation Dist.* (1941) 19 Cal.2d 123, 130 [“It is well settled that written notice to or actual knowledge on the part of public officers does not constitute a substantial compliance with or satisfaction of a statutory requirement for a verified claim, or give rise to an estoppel to assert the defense. The long established rule in this state is that the courts may allow no exceptions to the plain provisions of a claim statute under the guise of interpretation or construction. Compliance with the statute is mandatory and the requirement may not be waived.”]; see generally SAC.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **LaForga v. State Farm Mutual Automobile Insurance Company**
Case No. CV-2025-3801

Hearing Date: **January 21, 2026** **Department Eleven** **9:00 a.m.**

Petitioner Socorro LaForga's request for continuance of hearing on petition to compel arbitration is **GRANTED** and therefore, this matter is **CONTINUED** to **March 3, 2026**, at 9:00 a.m. in Department Eleven.